

CHAPTER 41.

An Act to confirm a certain Agreement supplementing Article Twelve of the Articles of Agreement for a Treaty between Great Britain and Ireland to which the force of law was given by the Irish Free State (Agreement) Act, 1922, and by the Constitution of the Irish Free State (Saorstát Eireann) Act, 1922.
[9th October 1924.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Agreement set forth in the Schedule to this Act, being an agreement supplementing Article Twelve of the Articles of Agreement for a treaty between Great Britain and Ireland to which the force of law was given by the Irish Free State (Agreement) Act, 1922, and by the Constitution of the Irish Free State (Saorstát Eireann) Act, 1922, is hereby confirmed, and the said Articles of Agreement for a treaty and the Irish Free State (Agreement) Act, 1922, shall have effect accordingly.

Confirma-
tion of
agreement.

12 Geo. 5.
c. 4.

2.—(1) This Act may be cited as the Irish Free State (Confirmation of Agreement) Act, 1924.

Short title
and com-
mencement.

(2) This Act shall come into operation on the date on which the said Agreement is confirmed by Act of the Parliament of the Irish Free State, or, if such an Act is passed before the passing of this Act, shall come into operation on the passing of this Act.

SCHEDULE.

AGREEMENT SUPPLEMENTING ARTICLE TWELVE OF THE ARTICLES OF AGREEMENT FOR A TREATY BETWEEN GREAT BRITAIN AND IRELAND TO WHICH THE FORCE OF LAW WAS GIVEN BY THE IRISH FREE STATE (AGREEMENT) ACT, 1922, AND BY THE CONSTITUTION OF THE IRISH FREE STATE (SAOR-STÁT ÉIREANN) ACT, 1922.

WHEREAS the Commissioners to be appointed under the said Article Twelve by the Government of the Irish Free State and by the British Government respectively have been duly appointed by those respective Governments, but the Government of Northern Ireland has declined to appoint the Commissioner to be so appointed by that Government, and no provision is made by the said Articles for such a contingency:

Now it is hereby agreed, subject to the confirmation of this Agreement by the British Parliament and the Oireachtas of the Irish Free State, that if the Government of Northern Ireland does not before the date of the passing of the Act of the British Parliament or of the Act of the Oireachtas of the Irish Free State confirming this Agreement, whichever is the later date, appoint the Commissioner to be so appointed by that Government, the power of the Government of Northern Ireland to appoint such Commissioner shall thereupon be transferred to and exercised by the British Government, and that for the purposes of the said Article any Commissioner so appointed by the British Government shall be deemed to be a Commissioner appointed by the Government of Northern Ireland, and that the said Articles of Agreement for a Treaty shall have effect accordingly.

Signed on behalf of the
British Government:

Signed on behalf of the
Government of the
Irish Free State:

J. RAMSAY MACDONALD. LIAM T. MACCOSAIR.

4th August 1924.
